

Court No. - 21

Case :- WRIT - C No. - 29545 of 2021

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

On the request made on behalf of the petitioner, put up this case as fresh on 24 November 2021, by way of last opportunity.

Order Date :- 10.11.2021

Prakhar

Court No. - 3

Case :- WRIT - C No. - 29545 of 2021

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Syed Aftab Husain Rizvi, J.

As prayed, *put up on 08.12.2021* as a fresh case before the appropriate bench.

Order Date :- 24.11.2021

T.S.

Court No. - 3

Case :- WRIT - C No. - 29545 of 2021

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Piyush Agrawal,J.

As prayed, **put up as a fresh case** before the appropriate Bench on **10.01.2022.**

Order Date :- 23.12.2021

T.S.

Court No. - 3

Case :- WRIT - C No. - 29545 of 2021

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

None appears for the petitioner even in the revised call. Learned Standing Counsel for the State-respondent and Sri Rajesh Yadav, learned counsel for the respondent nos. 2 and 3 are present.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 07.10.2021 (contained in Annexure no.5 to the writ petition) Issued by the respondent no.3, whereby the demand of Rs. 7,56,011/- has been made.

(ii) Issue a writ order or direction in the nature of mandamus directing the respondent no.3 to decide the objection/representation dated 13.10.2021 as provided under the Electricity Act, 2003 as well as under the provisions of U.P. Electricity Supply Code, 2005 and till the disposal of the objection/representation proceeding of the recovery may be stayed."

Sri Rajesh Yadav, learned counsel for the respondent No. 2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

This order shall be informed by learned counsel for the respondent no.2 to the petitioner/his counsel in writing within three days.

Order Date :- 16.5.2022/T.S.